

Pool Doctor and they do not support the theory that the Heaths were doing anything in their individual capacities on the property owned by their Family Trust and operated by a corporation. As discussed above, there are sufficient facts to show that the Heaths could be liable in their individual capacities.

Defendants also claim that the Trust property is occupied by K & G Unlimited, a California Corporation, dba The Pool Doctor. The complaint does not name K & G Unlimited and Defendants did not include a request for judicial notice in their moving papers of the fact that K & G Unlimited occupies the property. Arguments regarding an unnamed corporation are not properly before this Court. Further, it does not appear that this issue was included in the parties' meet and confer.

Breach of Easement (c/a 4)

As to the breach of easement claim, Defendants argue that the Trust owns the property and therefore, the Heaths cannot be liable for breach of the easement in their individual capacities. As noted above, the allegations are sufficient for the Heaths to be sued in their individual capacities. Further, to the extent there are different rules for breach of contract, Defendants did not cite any authority to support this position and therefore, the demurrer to cause of action four is overruled.

Trespass (c/a 5)

" 'The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm.' [Citation.]" (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 90–91.)

As to the trespass claim, Defendants provide the elements for trespass and then argues that Plaintiff has failed to allege facts to support each of the elements of trespass. Defendants offer no analysis or explanation on why each element of trespass is missing. Defendants have not met their burden of showing that the trespass claim fails and the demurrer is overruled as to cause of action five.

Nuisance (c/a 6)

As to the nuisance claim, Defendants again argue that they should not be sued in their individual capacities. As explained above, there are sufficient facts for the Heaths to be sued in their individual capacities. The demurrer is overruled as to cause of action six.

12. 9:00 AM CASE NUMBER: C25-01094

CASE NAME: FRANKLIN CHERRY VS. CHARMAINE COLLADO

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS FROM DEFENDANT CHARMAINE COLLADO TO REQUEST FOR IDENTIFICATION AND PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: CHERRY, FRANKLIN P.

TENTATIVE RULING:

SUMMARY

Plaintiff Franklin Cherry's motion to compel further responses to Request for Production of Documents, Set One, Nos. 4 and 19, is **denied**, for the reasons set forth below.

BACKGROUND

This action arises from Plaintiff's allegations that he suffered elder abuse while residing at a Residential Care Facility for the Elderly owned and/or operated by Defendants at 984 Bermuda Drive, Concord, California ("Facility").

On August 12, 2025, Plaintiff filed the present motion seeking further responses to Request for Production, Set One, Nos. 4, 14, and 19. Plaintiff subsequently withdrew the motion as to Request No. 14 by amended notice, leaving only Requests Nos. 4 and 19 at issue. The motion is supported by a memorandum of points and authorities, separate statement, and declaration of counsel.

Defendants opposed the motion on November 13, 2025, submitting a declaration of counsel asserting that, following extensive meet-and-confer efforts, they served third amended responses resolving all outstanding issues. As to the disputed requests, Defendants identified responsive documents by Bates number and stated that, after a diligent search and inquiry, no additional responsive documents were known to exist.

Plaintiff's reply, filed November 19, 2025, contends that the amended responses fail to strictly comply with Code of Civil Procedure sections 2031.220 and 2031.230.

ANALYSES

1. Scope of Discovery

Discovery in California is governed by the Civil Discovery Act. (Code Civ. Proc., § 2016.010 et seq.) Parties are entitled to broad discovery of any non-privileged matter relevant to the subject matter of the action or reasonably calculated to lead to admissible evidence. (§ 2017.010; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.)

However, the Court may restrict discovery when the burden, expense, or intrusiveness outweighs the likelihood that the information will lead to admissible evidence. (§ 2017.020, subd. (a).)

2. Meet-and-Confer Requirements

The Discovery Act requires parties to engage in a reasonable, good faith effort to resolve disputes informally before seeking court intervention. (§ 2016.040; see *Golf & Tennis Pro Shop, Inc. v. Superior Court (Frye)* (2022) 84 Cal.App.5th 127, 138.) Local Rules of the Contra Costa County Superior Court impose similar requirements and emphasize that discovery motions should be filed “sparingly” and only when disputes cannot otherwise be resolved. (Local Rules, rules 2.121(e), 2.122(c).) The record reflects that counsel satisfied these obligations prior to filing this motion.

3. Standards Governing Motions to Compel Further Responses

A party moving to compel further responses must show good cause supporting the discovery sought. (§ 2031.310, subd. (b)(1).) Once such a motion is filed, the burden shifts to the responding party to justify any objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Where a party asserts an inability to comply, section 2031.230 requires a verified statement affirming that: (1) a diligent search and reasonable inquiry were made; (2) the documents never existed, were destroyed, lost, or are no longer within the party’s possession, custody, or control; and (3) the identity and address of any person or organization believed to have the requested items. A response lacking these representations is defective.

4. Adequacy of Defendants’ Responses

Based on the papers submitted, the Court finds that Defendants’ third amended responses substantially comply with section 2031.230. Defendants identified responsive documents by Bates number and affirmatively represented that they conducted a diligent search and no further responsive documents exist. While the statutory language is not repeated verbatim, the substance of the representation sufficiently conveys Defendants’ claimed inability to produce additional documents.

The Court is entitled to rely on counsel’s representations of compliance under penalty of perjury and penalty of sanctions should later evidence reveal otherwise. If Defendants intentionally misrepresented their compliance to avoid production or conceal documents, the Discovery Act and Rules of Professional Responsibility provide appropriate remedies, including monetary sanctions, contempt and referral to the State Bar.

On the present record, Plaintiff has not demonstrated that Defendants’ responses are incomplete or that additional responsive documents exist. The Court therefore concludes that Defendants’ responses to Requests Nos. 4 and 19 satisfy the requirements of the Civil Discovery Act.

RULING

Plaintiff Franklin Cherry’s Motion to Compel Further Responses to Request for Production of documents, Set One, Request Nos. 4 and 19, is **denied**. The parties’ competing requests for sanctions are **denied**. Each party shall bear their own attorney’s fees and costs incurred in connection with this motion. Defendant shall prepare and electronically file a proposed order consistent with this ruling within ten (10) days, attaching this tentative ruling as an exhibit.